

THE CONTRACT LINE

How a contract is born, tested and ended — one stop at a time



NEW FOR 2026

The postal rule is on its way out

For almost two centuries, a posted acceptance made a contract the moment it hit the postbox. Once the new Act is in force, it will only count when it **reaches** the other person.

Contract (Formation and Remedies) (Scotland) Act 2026, ss13–14 · old law: Thomson v James (1855)

ONLY IN SCOTLAND

A promise can bind on its own

No "consideration" needed: nothing has to come back in return. Promise a £5 reward for your lost wallet and the finder can claim it.

Morton's Trustees (1899) · must be in writing: Requirements of Writing (Scotland) Act 1995

Contracts all around campus



Meal deal on the canteen shelf
Invitation to treat: you offer at the till



Your enrolment form
A written contract, and you have capacity at 16



Locker sign: "no liability for loss"
An exclusion notice may not protect them



"Coffee after class?"
Agreement, but no intention: not a contract



Upgrading your phone
Novation: the new contract replaces the old



Part-time job: "never work for a rival"
Restrictive covenant: must be reasonable



"I got the pizza, you got the taxi"
Compensation: the debts cancel out

Scan for the full story



Follow Sam, 17, through a first car deal.
Videos · quiz · every case explained

shahkark11-byte.github.io/contract-line

Shahkar Khan